

Contestant Number: _____

Time: _____

Rank: _____



LEGAL OFFICE PROCEDURES (245)

STATE – 2020

Part I: OBJECTIVE

Written Test (30 questions @ 5 points each) _____ (150 points)

Part II: PRODUCTION

Job 1 – Affidavit _____ (100 points)

Job 2 – Letter _____ (100 points)

TOTAL POINTS _____ (350 points)

Failure to adhere to any of the following rules will result in disqualification:

- 1. Contestant must hand in this test booklet and all printouts. Failure to do so will result in disqualification.**
- 2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests or facsimile (handwritten, photocopied, or keyed) are allowed in the testing area.**
Contestant may supply these permitted equipment and supplies: Pencils, pens, cordless calculator (electronic devices must meet NLC Calculator Guidelines), and published and/or unpublished written reference materials.
- 3. Electronic devices will be monitored according to ACT standards.**

No more than ten (10) minutes orientation

No more than sixty (60) minutes actual testing time

No more than ten (10) minutes wrap-up

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GENERAL INSTRUCTIONS

1. Answer the objective questions using the Scantron scoring sheet provided.
2. Make certain this test booklet contains Jobs 1 and 2.
3. Key all Jobs according to the instructions given.
4. Correct any obvious keyboarding errors and incorporate any editing notations.
5. Correct any errors in formatting. Use formatting shown in the *Style & Reference Manual*.
6. For any problem where you would normally key your reference initials, key your contestant number. Your name or initials should NOT appear on any work you submit.
7. Key your contestant number and job number as the footer in the lower left-hand corner of all work submitted unless otherwise specified.

<i>Example:</i>
99-9999-9999 Job 1

8. If you finish before the end of the 60 minutes of testing, notify the proctor. In the event of a tied score, time may be a factor in determining the winner.
9. When turning in your materials, place your scoring sheet on top of your jobs. The jobs should be arranged in numerical order.

Production Standards	
0 Errors	100 points
1 Error	90 points
2 Errors	70 points
3 Errors	50 points
4+ Errors	0 points

PART I – OBJECTIVE

Multiple-Choice Directions: Mark on the Scantron scoring sheet the letter of the answer that best answers the question or completes/describes the statement.

SECTION 1 – LEGAL KNOWLEDGE

1. What term describes a person or entity named in a last will and testament to administer the estate?
 - a. Personal Assistant
 - b. Court Representative
 - c. Executor
 - d. Guarantor
2. What of the following sets of words is usually keyed in all capital letters?
 - a. THIS CONTRACT ...
 - b. ORDERED AND ADJUDGED ...
 - c. ON THIS DATE ...
 - d. PURSUANT TO ...
3. A(n) _____ is a written reference that refers to legal authorities such as statutes and case law and other printed documentation.
 - a. citation
 - b. bibliography
 - c. cross reference
 - d. treatise
4. When an attorney represents a client for no fees (usually the client cannot afford to pay legal fees), the matter is referred to as _____.
 - a. insolvent
 - b. legal servitude
 - c. habeas corpus
 - d. pro bono
5. A probate court would handle which of the following legal matters?
 - a. Guardianships
 - b. Bankruptcies
 - c. Civil appeals
 - d. Divorces
6. While working on a lawsuit, attorneys prepare _____ to give to the opposition party that ask questions about the facts of the case.
 - a. court orders
 - b. briefs
 - c. interrogatories
 - d. injunctions

7. Which court document requires a person to bring documents or evidence to court?
 - a. Complaint
 - b. Notice of Hearing
 - c. Litigation
 - d. Subpoena Duces Tecum
8. A(n) _____ refers to a criminal case that holds a possibility of punishment by death.
 - a. criminal appellate case
 - b. criminal proceeding
 - c. capital case
 - d. domiciled case
9. Which of the following is not a part of a business letter?
 - a. Salutation
 - b. Inside address
 - c. Guide words
 - d. Reference initials
10. Corporations are governed by the language written in their _____.
 - a. corporate memoranda
 - b. articles of charter
 - c. bylaws
 - d. policy manuals
11. During the discovery phase of a lawsuit, attorneys on all sides may try to find the facts of the case by asking for which of the following documents?
 - a. due process
 - b. private investigation
 - c. amicus brief
 - d. answers to interrogatories
12. The term *voir dire* has to do with which of the following processes?
 - a. Obtaining discovery in a litigated matter
 - b. Choosing a jury
 - c. Estate planning
 - d. Obtaining testimony from an incarcerated person
13. A _____ may exist if an attorney represents, or has at any time represented, client on both sides of a legal matter.
 - a. ex parte
 - b. fiduciary question
 - c. mens rea
 - d. conflict of interest

14. Which of the following is the best definition of a deposition?
- An oral statement given under oath
 - Testimony given in a courtroom
 - Sworn statement given at an accident or crime scene
 - Answers given during a criminal interrogation
15. The first step in a legal action is usually a _____ that explains the claimant's damages and remedies requested.
- demand letter
 - complaint and summons
 - warrant for arrest
 - court hearing
16. A _____ is a person appointed by the court to represent a minor or an incapacitated person.
- paraprofessional
 - notary public
 - guardian
 - guardian ad litem
17. Money or property belonging to person A and held by person B until person A fulfills an obligation to person C is referred to _____.
- escrow
 - bona fide
 - chattel
 - retainer
18. A court order that protects the safety of an individual from harassment or personal harm is called a _____.
- protective order
 - burden of proof
 - nuisance order
 - subpoena
19. Which of the following is an act of corroboration?
- Being present with a person at the time he or she commits a crime
 - Testifying against a defendant in a court of law
 - Filing a written complaint with the police or the court about an individual
 - Making a statement that is the same as another person's statement
20. When a higher court orders that a matter be returned to a lower court for some specific action, it is referred to as a _____.
- remand
 - retrial
 - reversion
 - repeal

SECTION 2 – WORKING IN A LEGAL OFFICE

21. The attorney Rene works for gave instructions to prepare a bill for his client. The bill included five and a half hours of attorney time at \$260 per hour, \$142 in court costs, and \$68.45 in photocopies and miscellaneous expense. What is the total amount of the bill?
- \$1,510.45
 - \$1,420.45
 - \$1,600.45
 - \$1,640.45
22. Lawyers are members of the _____, which is a professional association that oversees matters of concern for attorneys, including ethics.
- Association of Legal Professionals
 - American Lawyers Association
 - American Bar Association
 - Law Professionals of America
23. The process of _____ is editing a document in a way that shows inserts and deletions.
- proofreading
 - redlining
 - conforming
 - verifying
24. Which of the following most accurately describes the duty of legal support staff with regard to legal ethics?
- All staff in a legal office are bound to legal ethics and must understand and perform their jobs according to them.
 - Attorneys are bound by legal ethics, but unlicensed (nonattorney) staff are not bound by them.
 - Unlicensed (nonattorney) support staff are bound only by the legal ethics that have been explained to them.
 - Courts make exceptions to breaches of ethics carried out by unlicensed (nonattorney) staff, and attorneys are not held responsible for them.
25. Private law firms are required to maintain a separate bank account for client monies. These are referred to as _____.
- retainer accounts
 - estate accounts
 - client accounts
 - trust accounts
26. Which of the following is correctly written in legal form words and figures?
- Forty-six Thousand Dollars (\$46,000.00)
 - Forty-six Thousand (\$46,000) Dollars
 - Forty-six Thousand and 00/100 Dollars (\$46,000.00)
 - Forty-six Thousand and xx/100 (\$46,000.00) Dollars

27. The term _____ refers to unauthorized handwriting or keying of words or numbers in a legal document with the intent of altering the document.
- estoppel
 - inter-editing
 - noncompliance
 - interpolate
28. Which of the following is an unethical workplace action for an employee in a legal office?
- Looking for a different job during the employee's personal time
 - Calling in sick in order to complete personal errands that must be accomplished during the work day.
 - Using vacation days for a community service project
 - Working through a lunch hour to meet a deadline
29. Which of the following sentences contains a grammatical, number style, spelling, or other error?
- All personnel should complete their health renewal forms by May 1.
 - To ensure communication of the policies, every manager is directed to speak individually to his or her staff.
 - Each staff member needs to feel comfortable discussing the new policies.
 - Neither personnel and managers can be late in submitting renewal forms
30. Which of the following sentences contains a grammatical, number style, spelling, or other error?
- We appreciate you not parking in the visitors parking spaces.
 - Please use the southwest parking lot instead of the visitor parking lot.
 - The parking lots are clearly marked for visitors and employees.
 - All new employees should obtain a parking pass for the southwest parking lot.

PART II – PRODUCTION

Your role in the production part of this test is to work for the law firm of Wooster & Hunt as a legal office assistant. You have been asked to prepare two documents for attorney Randall Nebeker:

Job 1: Letter to a new client, the Chicago NewsDaily, from Randall Nebeker
Your contact at the Chicago NewsDaily is Ms. Lucille Sampleton, who is the Associate Counsel for the NewsDaily.

Job 2: Affidavit

Follow any proofreading symbols given, and correct any obvious errors in grammar, spelling, capitalization, number style, and word choice.

Follow the contest and format guidelines in the WSAP, the BPA Style & Reference Manual, and the General Instructions provided with this event.

Job 1

[current date]

Ms Lucille Sampleton
Associate Council
Chicago NewsDaily
1400 Ohio Avenue
Chicago, IL 60601-1234

Subject: Retainer Fee

Dear Lucille

It was a pleasure to meet your yesterday and discuss the details of the NewsDaily's acquisition of property in Rockford. Our firm is pleased you choose us to handle the transactions and business end of this acquisition.

We discussed^{that} the retainer will be \$50,000.00. We will prepare and submit monthly statements to you that detail our work and expenses for the month. The monthly statement will request you to remit the amount that would keep your retainer at \$50,000 level. I have instructed my assist.^{sp} to prepare the retainer fee agreement and send it to you by the end of the week.

I look forward to working with you over the coming months.

[add closing signature block]

Job 2: Affidavit

STATE OF ILLINOIS COUNTRY OF CLARK

AFFIDAVIT

I, Randall J. Nebeker, upon oath, state as follows:

1. On Monday, April 1, 2020, I provided to Lucille Sampleton at the Chicago NewsDaily the entire file my office has compiled for our former client the Chicago NewDaily.

2. ~~My office~~ ^{Wooster & Hunt} did not keep copies of any documents that belong to our former client.

2. ~~My office~~ ^{Wooster & Hunt} kept copies of all documents that were generated from my office. These include billing statements, notes, and any research performed by us or our designee(s).

[add signature block for Mr. Nebeker]

[add verification language and a signature line for the Notary Public]